



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

December 12, 2022

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202103714 regarding Sergeant John Filippi, Tax No. 948966 (DADS No. 2022-27116)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter and has determined that the actions of Sergeant Filippi do not rise to the level of actionable misconduct. Sergeant Filippi supervised the arrest of an individual who was observed sitting inside of a parked vehicle. Said individual at times referred to the vehicle as his mother's vehicle and at other times referred to the same vehicle as his own. The varied account as to whom the vehicle belonged created enough ambiguity as to not permit Sergeant Filippi to release the vehicle on the scene.

Additionally, no one on the scene produced documents showing lawful possession of the vehicle thereby further necessitating the removal of said vehicle. Thus, Sergeant Filippi correctly had the vehicle removed to a local precinct where a subsequent inventory search properly occurred. The inventory search was conducted in order to comply with Department regulations that mandate such a search when a vehicle is removed from the scene and brought to a precinct for safekeeping.

It bears noting that both the removal of the vehicle and its subsequent search were documented on appropriate Department forms. Thus, Sergeant Filippi acted in full compliance with Department policy and his actions do not warrant an imposition of any disciplinary penalty.

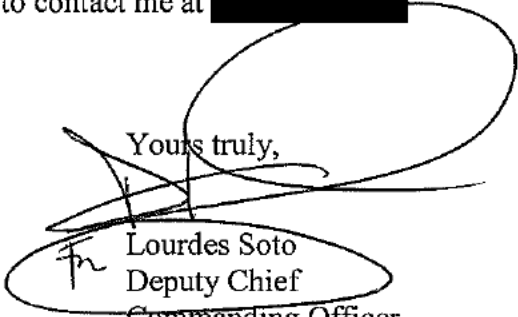
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Therefore, based on the foregoing, the Police Commissioner has determined that Sergeant Filippi will receive no disciplinary action for the alleged violation of Administrative Guide Procedure 304-06 (1) (Prohibited Conduct/Seized Property and Vehicle Search).

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,


Lourdes Soto
Deputy Chief
Commanding Officer
Police Commissioner's Office